

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1323

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO THE IDAHO CONSTITUTIONAL MONEY ACT OF 2025; AMENDING SECTION 67-9803, AS ENACTED BY SECTION 2, CHAPTER 107, LAWS OF 2025, TO PROVIDE FOR THE SPECIFIC PERFORMANCE OF TENDERING THE TYPE OR FORM OF SPECIE EXPRESSLY DESIGNATED IN CERTAIN CONTRACTS AND TO REDESIGNATE THE SECTION; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That 67-9803, Idaho Code, as enacted by Section 2, Chapter 107, Laws of 2025, be, and the same is hereby amended to read as follows:

~~67-9803~~ 67-9903. GOLD AND SILVER COIN AND SPECIE. (1) To the full extent allowed by clause 1, section 10, article I of, and the tenth amendment to, the constitution of the United States, gold and silver coin and specie minted domestically shall be legal tender in the state of Idaho under the laws of this state. The state may also elect to use gold and silver coin and specie in conducting its business.

(2) Unless expressly provided by statute or by contract, no person or other entity may compel another person or other entity to tender or accept gold or silver coin or specie unless agreed upon by the parties.

(3) If a valid contract expressly designates a type or form of specie as tender, then an Idaho court asked to adjudicate a breach of such contract shall require, as a remedy for such breach, the specific performance of tendering the type or form of specie expressly designated in the contract.

SECTION 2. An emergency existing therefor, which emergency is hereby declared to exist, this act shall be in full force and effect on and after July 1, 2026.